



United States
Attorney's Office
District of Massachusetts

PRESS RELEASE

Two Former eBay Executives Sentenced to Prison for Cyberstalking

Thursday, September 29, 2022

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – The former Senior Director of Safety & Security at eBay, Inc. and the company's former Director of Global Resiliency were sentenced to prison today for their roles in a cyberstalking campaign targeting the editor and publisher of a newsletter that eBay executives viewed as critical of the company.

James Baugh, 47, of San Jose, Calif., was sentenced by U.S. District Court Judge Patti B. Saris to 57 months in prison and two years of supervised release. Baugh was also ordered to pay a fine of \$40,000. David Harville, 50, of Las Vegas, Nev., was sentenced to two years in prison and two years of supervised release. Harville was also ordered to pay a fine of \$20,000. On April 25, 2022, Baugh pleaded guilty to one count of conspiracy to commit stalking through interstate travel and through facilities of interstate commerce, two counts of stalking through interstate travel, two counts of stalking through facilities of interstate commerce, two counts of witness tampering and two counts of destruction, alteration and falsification of records in a federal investigation. On May 12, 2022, Harville pleaded guilty to one count of conspiracy to commit stalking through interstate travel and through facilities of interstate commerce, two counts of stalking through interstate travel and two counts of stalking through facilities of interstate commerce.

“The internet is incredibly powerful. It brings community, information, and even merchandise right to our homes. Mr. Baugh and Mr. Harville used the internet's power to harass and intimidate

a couple who did nothing — nothing — other than publish content that our First Amendment protects. The defendants' toxic brand of online and real-world harassment, threats, and stalking was outrageous, cruel and defies any explanation — all the more because these men were seasoned and highly paid security executives backed by the resources of a Fortune 500 corporation. Their behavior was reprehensible. The just sentences the Court imposed today will take Mr. Baugh and Mr. Harville offline and out of our community for some time. This should serve as a strong reminder to all that holding positions of wealth and privilege does not absolve or shield criminals from accountability and incarceration. The government's investigation continues," said United States Attorney Rachael S. Rollins.

"Both men demonstrated a clear contempt for the law when they weaponized eBay's security department to engage in an incredibly disturbing pattern of retaliatory harassment and intimidation to torment this couple, who, thankfully, did not let their fear silence them," said Joseph R. Bonavolonta, Special Agent in Charge of the FBI Boston Division. "While today's sentencings cannot erase the substantial distress their victims suffered, it does make it crystal clear that anyone who goes online to threaten, intimidate, or harass others will face real-world consequences, including federal prison time."

Harville and Baugh were arrested and charged in June 2020. Co-conspirators and former eBay employees Philip Cooke, Brian Gilbert, Stephanie Popp, Veronica Zea and Stephanie Stockwell previously pleaded guilty for their roles in a conspiracy to cyberstalk the victims. Cooke was sentenced in July 2021 to 18 months in prison. Gilbert, Popp, Zea and Stockwell are awaiting sentencing.

Between approximately Aug. 5, 2019 and Sept. 6, 2019, Harville, Baugh and their co-conspirators at eBay agreed to engage in a harassment campaign targeting a husband and wife in Natick, Mass. for their roles in publishing a newsletter that reported on issues of interest to eBay sellers. Senior executives at eBay were frustrated with the newsletter's tone and content as well as the substance of comments posted beneath the newsletter's articles. The harassment campaign arose from communications between those senior executives and Baugh, who was eBay's senior security employee.

The defendants and their co-conspirators executed a three-part harassment campaign intended to intimidate the victims and to influence their reporting about eBay. The campaign included sending anonymous and disturbing deliveries to the victims' home; sending private Twitter messages and public tweets criticizing the newsletter's content; threats to visit the victims in Natick; and traveling to Natick to surveil the victims and installing a GPS tracking device on their car.

The deliveries ordered to the victims' home included a book on surviving the death of a spouse, a bloody pig mask, a fetal pig, a funeral wreath and live insects. The harassment also featured

Craigslist posts inviting members of the public to experience sexual encounters at the victims' home.

The threatening Twitter messages were written as if they had been sent by eBay sellers who were unhappy with the victims' coverage in the newsletter. Some of these messages posted the victims' home address and threatened to show up at their home.

On Aug. 15, 2019, Baugh, Harville and a co-conspirator traveled from California to Natick to surveil the victims and install a GPS tracking device on the victims' car. The victims spotted the surveillance team and contacted local police. Harville also purchased tools intending to break into the victims' garage and lied to an eBay investigator who was responding to the Natick Police's request for assistance.

After learning of the police's investigation, Harville and Baugh deleted digital evidence related to the cyberstalking campaign. Additionally, Baugh made false statements to police and internal investigators and falsified records intended to throw the police off the trail.

U.S. Attorney Rollins, FBI SAC Bonavolonta and Natick Police Chief James G. Hicks made the announcement today. eBay provided valuable assistance and cooperation with the investigation. Assistant U.S. Attorney Seth B. Kosto, Deputy Chief of Rollins' Securities, Financial & Cyber Fraud Unit prosecuted the case.

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